

e-Stamp

INDIAN – NON JUDICIAL GOVERNMENT OF GUJARAT e-Stamp

Certificate No	IN-GJ63430861600630X
Certificate Issue Date	24-Feb-2025 07:09 PM
Account Reference No	NESL (CR)/ GJSHCIL10/ AHMEDABAD/ GJ-AH
Unique Doc. Reference	GJ0066INESL2025055446831
Purchased by	HCP DESIGN PLANNING ANDMANAGEMENT P
Property Description	NOT APPLICABLE
Consideration Price (Rs)	2929450.00
First Party	BANKOFBARODA
Second Party	HCP DESIGN PLANNING ANDMANAGEMENT P
Stamp Duty Paid By	HCP DESIGN PLANNING ANDMANAGEMENT P
Stamp Duty Amount (Rs)	300.00
Description of Doc.	ARTICLE 32 LETTER OF GUARANTEE



NeSL e-BG Issuance



BANK GUARANTEE FOR PERFORMANCE SECURITY

NAME OF THE BANK: BANK OF BARODA, S.P. COLONY BRANCH
ADDRESS: S.P. COLONY BRANCH, GROUND FLOOR ABHUSHAN COMPLEX MAHADEVNAGAR,
AHMEDABAD 380014
GUARANTEE NO: 0341IGP000720525
NAME OF THE SERVICE PROVIDER: M/S HCP DESIGN, PLANNING AND MANAGEMENT PVT. LTD.
DATE OF EXPIRY:19/02/2028
LIMIT TO LIABILITY: RS. 29,29,450/- (RUPEES TWENTY NINE LAKHS TWENTY NINE THOUSAND FOUR
HUNDRED AND FIFTY ONLY)
REF: TENDER NO: RFP NO: GMDC/KEP/38/2024-25, AUGUST 2024
SUBJECT:BANK GUARANTEE TOWARDS PERFORMANCE SECURITY

DATE:24/02/2025

TO,
GENERAL MANAGER (PP AND D),
GUJARAT MINERAL DEVELOPMENT CORPORATION LIMITED
KHANIJ BHAVAN, 132-RING ROAD,
GUJARAT UNIVERSITY GROUND, VASTRAPUR,
AHMEDABAD 380052, GUJARAT, INDIA

IN CONSIDERATION OF GUJARAT MINERAL DEVELOPMENT CORPORATION LIMITED (HEREINAFTER CALLED GMDC) WHICH EXPRESSION SHALL UNLESS REPUGNANT TO THE SUBJECT OF CONTEXT INCLUDE HIS SUCCESSORS AND ASSIGNS HAVING AGREED TO EXEMPT M/S HCP DESIGN, PLANNING AND MANAGEMENT PVT. LTD. (HEREINAFTER CALLED BIDDER) FROM DEMAND UNDER THE TERMS AND CONDITIONS OF REQUEST FOR PROPOSAL (HEREINAFTER CALLED THE SAID BIDDING DOCUMENT) ISSUED BY THE GMDC VIDE TENDER NO RFP NO: GMDC/KEP/38/2024-25, AUGUST 2024 FOR THE WORK DEVELOPMENT OF DETAILED DESIGN AND DEVELOPMENT OF A GREENFIELD TOWNSHIP AT KADIPANI, GUJARAT (NAME OF THE FACILITIES) FROM EARNEST MONEY DEPOSIT (EMD) OF BID FOR THE DUE FULFILMENT BY THE BIDDER OF THE TERMS AND CONDITIONS CONTAINED IN THE SAID BIDDING DOCUMENT ON PRODUCTION OF BANK GUARANTEE FOR RS.29,29,450/- (RUPEES TWENTY NINE LAKHS TWENTY NINE THOUSAND FOUR HUNDRED AND FIFTY ONLY)

1.WE THE BANK OF BARODA, S.P. COLONY BRANCH HEREINAFTER REFERRED TO AS BANK HAVING OUR REGISTERED OFFICE AT GROUND FLOOR ABHUSHAN COMPLEX OPP BHARAT KRISHNA BACKERY, MAHADEVNAGAR, AHMEDABAD 380014 DO HEREBY UNDERTAKE AND AGREE TO INDEMNIFY AND KEEP INDEMNIFIED GMDC TO EXTENT OF RS.29,29,450/- (RUPEES TWENTY-NINE LAKHS TWENTY-NINE THOUSAND FOUR HUNDRED AND FIFTY ONLY) AGAINST ANY LOSSES, DAMAGE COST, CHARGES AND EXPENSES CAUSED TO OR SUFFERED BY OR THAT MAY BE CAUSED OR SUFFERED BY

BANK OF BARODA SARDAR PATEL COLONY, AHMEDABADRATNA JYOTI BUILDINGNR. SARDAR PATEL STATU

PHONE NUMBER: ,

FAX NUMBER: ,

EMAIL: SARDAR@BANKOFBARODA.CO.IN

SWIFT: BARB XZ 04 737



GMDC BY REASON OF ANY BREACH OR BREACHES BY THE BIDDER OF ANY OF THE TERMS AND CONDITIONS CONTAINED IN THE SAID BIDDING DOCUMENT AND UNCONDITIONALLY PAY THE AMOUNT CLAIMED BY GMDC ON DEMAND AND WITHOUT DEMUR TO THE EXTENT AFORESAID.

2.WE BANK OF BARODA, S.P. COLONY BRANCH DO HEREBY UNDERTAKE TO PAY THE AMOUNTS DUE AND PAYABLE UNDER THE GUARANTEE WITHOUT ANY DEMUR MERELY ON A DEMAND BY YOU STATING THAT THE AMOUNT CLAIMED IS DUE BY WAY OF LOSS OR DAMAGE CAUSED TO OR WOULD BE CAUSED OR SUFFERED BY YOU BY REASON OF ANY BREACH BY THE SAID BIDDER OF ANY OF THE TERMS OR CONDITIONS CONTAINED IN THE SAID BIDDING DOCUMENT BY REASON OF THE BIDDERS FAILURE TO FULFIL THE CONDITIONS OF SAID BIDDING DOCUMENT. ANY SUCH DEMAND ON THE BANK SHALL BE CONCLUSIVE AS REGARDS THE AMOUNT DUE AND PAYABLE BY THE BANK UNDER THIS GUARANTEE. HOWEVER, OUR LIABILITY UNDER THIS GUARANTEE SHALL BE RESTRICTED TO AN AMOUNT NOT EXCEEDING RS. 29,29,450/- (RUPEES TWENTY NINE LAKHS TWENTY NINE THOUSAND FOUR HUNDRED AND FIFTY ONLY)

3.WE, BANK OF BARODA, S.P. COLONY BRANCH FURTHER AGREE THAT GMDC SHALL BE THE SOLE JUDGE OF AND AS TO WHETHER THE BIDDER HAS COMMITTED ANY BREACH OR BREACHES OF TERMS AND CONDITIONS OF THE SAID BIDDING DOCUMENT AND THE EXTENT OF LOSS, DAMAGES, COSTS, CHARGES AND EXPENSES CAUSED TO OR SUFFERED BY OR THAT MAY CAUSE TO OR SUFFERED BY GMDC ON ACCOUNT HEREOF TO THE EXTENT OF THE BID SECURITY REQUIRED TO BE DEPOSITED BY THE BIDDER IN RESPECT OF THE SAID DOCUMENT AND THE DECISION OF GMDC THAT THE BIDDER HAS COMMITTED SUCH BREACH OR BREACHES AND AS TO THE AMOUNT OR AMOUNTS OF LOSS, DAMAGES, COSTS, CHARGES, AND EXPENSES CAUSED TO OR SUFFERED BY OR THAT MAY BE CAUSED TO OR SUFFERED BY GMDC SHALL BE FINAL AND BINDING ON US.

4.WE, BANK OF BARODA, S.P. COLONY BRANCH FURTHER AGREE THAT GUARANTEE HEREIN CONTAINED SHALL REMAIN IN FULL FORCE AND EFFECT DURING THE PERIOD THAT WOULD BE TAKEN FOR THE PERFORMANCE ON THE SAID BIDDING DOCUMENT AND THAT IT SHALL CONTINUE TO BE ENFORCEABLE TILL YOU CERTIFY THAT TERMS AND CONDITIONS OF THE SAID BIDDING DOCUMENT HAVE BEEN FULLY AND PROPERLY CARRIED OUT BY THE SAID BIDDER AND ACCORDINGLY DISCHARGE THE GUARANTEE. UNLESS A DEMAND OR CLAIM UNDER THIS GUARANTEED IS MADE ON US IN WRITING ON OR BEFORE THE 19/02/2028. WE SHALL BE DISCHARGED FROM ALL LIABILITY UNDER THIS GUARANTEE.

5.WE, BANK OF BARODA, S.P. COLONY BRANCH FURTHER AGREE WITH YOU THAT YOU HAVE THE FULLEST LIBERTY WITHOUT OUR CONSENT AND WITHOUT AFFECTING IN ANY MANNER OUR OBLIGATIONS HEREUNDER TO VARY ANY OF THE TERMS AND CONDITIONS OF THE SAID BIDDING DOCUMENT OR TO EXTEND TIME OF PERFORMANCE BY THE SAID BIDDER FROM TIME TO TIME OR TO POSTPONE FOR ANY TIME OR FROM TIME TO TIME ANY OF THE POWERS EXERCISABLE BY YOU AGAINST THE SAID BIDDER AND TO FORBEAR OR ENFORCE ANY OF THE TERMS AND CONDITIONS RELATING TO THE SAID BIDDING DOCUMENT AND WE SHALL NOT BE RELIEVED FROM OUR LIABILITY BY REASON OF ANY SUCH VARIATION OR EXTENSION BEING GRANTED TO THE SAID BIDDER OR FOR ANY FORBEARANCE ACT OR OMISSION ON YOUR PART OR ANY INDULGENCE BY YOU TO THE SAID

BANK OF BARODA SARDAR PATEL COLONY, AHMEDABAD RATNA JYOTI BUILDING NR. SARDAR PATEL STATU

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BIDDER OR ANY SUCH MATTER OR THING WHATSOEVER UNDER THE LAW RELATING TO SURETIES WOULD BUT FOR THIS PROVISION HAVE EFFECT OF SO RELIEVING US.

6.IT SHALL NOT BE NECESSARY FOR GMDC TO PROCEED AGAINST THE BIDDER BEFORE PROCEEDING AGAINST THE BANK AND THE GUARANTEE HEREIN CONTAINED SHALL BE ENFORCEABLE AGAINST THE BANK, NOTWITHSTANDING ANY SECURITY WHICH GMDC MAY HAVE OBTAINED FROM THE BIDDER AT THIS TIME WHEN PROCEEDING IS TAKEN AGAINST BANK HEREUNDER BE OUTSTANDING OR UNREALIZED.

7.WE, BANK OF BARODA, S.P. COLONY BRANCH FURTHER UNDERTAKE TO UNCONDITIONALLY PAY THE AMOUNT CLAIMED BY GMDC MERELY ON DEMAND AND WITHOUT DEMUR TO THE EXTENT AFORESAID.

8.WE, THE SAID BANK LASTLY UNDERTAKE NOT TO REVOKE THIS GUARANTEE DURING ITS CURRENCY EXCEPT WITH THE PREVIOUS CONSENT OF GMDC IN WRITING.

9.THIS GUARANTEE WILL NOT BE DISCHARGED DUE TO THE CHANGE IN THE CONSTITUTION OF THE BANK OR THE SAID BIDDER.

10.THE BANK HAS UNDER ITS CONSTITUTION POWER TO GIVE THIS GUARANTEE AND BRANCH MANAGER OF SP COLONY BRANCH WHO HAS SIGNED IT ON BEHALF OF THE BANK HAVE THE AUTHORITY TO DO SO.

NOTWITHSTANDING ANY THING TO THE CONTRARY CONTAINED HEREIN ABOVE.

I. OUR LIABILITY UNDER THIS BANK GUARANTEE SHALL NOT EXCEED RS.29,29,450/- (RUPEES TWENTY NINE LAKHS TWENTY NINE THOUSAND FOUR HUNDRED AND FIFTY ONLY)

II.THIS BANK GUARANTEE SHALL BE VALID UP TO 19.02.2028

III.IT IS CONDITION OF OUR LIABILITY FOR PAYMENT OF THE GUARANTEED AMOUNT OR ANY PART THEREOF ARISING UNDER THIS BANK GUARANTEE THAT WE RECEIVE A VALID WRITTEN CLAIM OR DEMAND FOR PAYMENT UNDER THIS BANK GUARANTEE ON OR BEFORE 19.02.2028 FAILING WHICH OUR LIABILITY UNDER THE GUARANTEE WILL AUTOMATICALLY CEASE.

IV.WE ARE LIABLE TO PAY THE GUARANTEE AMOUNT OR ANY PART THEREOF UNDER THIS BANK GUARANTEE AS DEMANDED BY GUJARAT MINERAL DEVELOPMENT CORPORATION LIMITED (GMDC) SERVE UPON US AS WRITTEN CLAIM OR DEMAND ON OR BEFORE 19.02.2028

V.THE SAID BANK GUARANTEE IS NON ASSIGNABLE IN NATURE, HENCE IT CANNOT BE ASSIGNED/TRANSFERRED TO ANY THIRD PARTY.

VI.THE SAID BANK GUARANTEE CANNOT BE AUTO-RENEWED.

VII.THIS BANK GUARANTEE IS ENCASHABLE AND PAYABLE AT
BRANCH NAME S P COLONY IFSC CODE: BARB0SARDAR BRANCH ALPHA: SARDAR ADDRESS:GF
ABHUSHAN COMPLEX OPP BHARAT KRISHNA BAKERY MAHADEV NAGAR AHMEDABAD -14

THIS GUARANTEE WILL BE OPERATIVE WHEN ACCOMPANIED WITH ADVICE (SFMS) ISSUED FROM THE ADVISING BANK.

BANK OF BARODA SARDAR PATEL COLONY, AHMEDABAD RATNA JYOTI BUILDING NR. SARDAR PATEL STATU

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